

ServiceNow® Store Terms of Use (Rev. 2021.4.23)

THESE APP STORE TERMS OF USE ("AGREEMENT") GOVERNS USE OF SERVICENOW'S APP STORE CURRENTLY LOCATED AT [HTTP://STORE.SERVICENOW.COM](http://store.servicenow.com) ("STORE") AND ANY APP OFFERED THEREIN BY YOU AND ANY OTHER PERSON ON WHOSE BEHALF YOU ACCEPT THESE TERMS (COLLECTIVELY "YOU" and "YOUR"). THIS AGREEMENT FORMS A BINDING CONTRACT BETWEEN YOU AND SERVICENOW WHEN ACCEPTED BY YOU. YOU ACCEPT THIS AGREEMENT BY (1) ACCESSING OR USING THE STORE, (2) INDICATING ACCEPTANCE OF THIS AGREEMENT WHEN IT IS PRESENTED ONLINE, SUCH AS BY CHECKING A BOX CAPTIONED WITH ACCEPTANCE LANGUAGE OR CLICKING AN ICON BEARING AN "ACCEPT" OR SIMILAR LEGEND OR BY OTHERWISE ELECTRONICALLY SIGNING THIS AGREEMENT; OR (3) EXERCISING OR PURPORTING TO EXERCISE ANY OF THE RIGHTS GRANTED TO YOU UNDER THIS AGREEMENT. THE INDIVIDUAL ACCEPTING THIS AGREEMENT ON BEHALF OF AN ENTITY REPRESENTS THAT HE OR SHE HAS AUTHORITY TO BIND THE ENTITY TO THESE TERMS AND COMMIT FUNDS ON ITS BEHALF. IF YOU DO NOT ACCEPT THIS AGREEMENT, YOU MAY NOT USE THE STORE. YOU ARE CONTRACTING WITH SERVICENOW, INC. (IF YOUR DOMICILE IS WITHIN THE USA, CANADA OR MEXICO), SERVICENOW JAPAN G.K. (IF YOUR DOMICILE IS WITHIN JAPAN), OR SERVICENOW NEDERLAND B.V. (IF YOUR DOMICILE IS WITHIN ANY OTHER COUNTRY) (IN EITHER CASE, "SERVICENOW," "WE," "US" AND "OUR").

1. **Definitions.** "App" means customizations of ServiceNow Products offered on Store. "App Conditions" means the terms and conditions applicable to a particular App. "ServiceNow App" means an App developed by ServiceNow that is expressly designated as such on Store. "ServiceNow Product" means any ServiceNow products and services available outside of Store. ServiceNow Apps are not ServiceNow Products. All Apps are licensed by third parties and not ServiceNow except ServiceNow Apps. ServiceNow is not a party to any App Conditions except App Conditions for ServiceNow Apps.
2. **Purchase and Payment of Apps.** Rights to access Apps are subject to the applicable App Conditions and your agreement for use of the ServiceNow Product on which the App is installed. Prices stated on Store are final. Purchases made on Store are final, non-cancellable and non-refundable, and a continuous and non-divisible commitment for the full duration of its then-current term regardless of the invoice schedule. Subscription terms are for 12 months and automatically renew during the term of this Agreement unless you notify us of your intention to cancel at least 30 days prior to the end of the then-current term. Prices for renewal are subject to increase upon advance notice to you. If you purchase an App by credit card, your card will be billed monthly during the subscription term. Otherwise, payment for an App is due within 30 days after invoice. Late payments accrue interest at 1.5% per month or the legal maximum interest rate, whichever is lower. ServiceNow may suspend or cancel your subscription if payment is late. Prices exclude all taxes associated with your purchase, access to, use of or payment for the App, which you are responsible for paying. ServiceNow is exclusively responsible for taxes imposed on its net income. All applicable sales tax, value-added tax, duties and other similar governmental charges shall be based on the ship-to address provided by you.
3. **App Rights and Restrictions.** You will use Apps solely as run on ServiceNow Products. Purchase of an App (including a ServiceNow App) does not entitle you to use ServiceNow Products, which you must purchase separately. You may not: (a) provide a third party with access to an App except as necessary to provide services to you as an agent or contractor; or (b) use the App to develop a product that is operable apart from the ServiceNow Products or to circumvent ServiceNow APIs. Upon notification of overuse of an App from ServiceNow, you will purchase additional subscription rights or stop such overuse within thirty (30) days.
4. **Platform Use Rights.** Purchasing an App does not give you a license to run other applications or customizations on ServiceNow Products. Unless expressly marked on the Store description web page for the particular App as including platform subscription rights to use the App, Apps available for free or no charge require platform subscription rights to run the App to the same extent that you would require platform subscription rights to use applications or customizations if the App were developed by you as a customization of the ServiceNow Products.
5. **Compatibility and Access.** Apps are certified for particular releases. You are responsible for verifying compatibility between an App and your ServiceNow Products prior to installation. Use of all Apps, including those offered at no charge, may require a valid license as indicated on the App description page to the applicable ServiceNow Product(s) or third-party product(s).
6. **Data Collection and Reporting.** Use of an App may cause data to be transmitted outside of the ServiceNow environment. To the extent that data is transferred outside of the ServiceNow environment, ServiceNow is not responsible for the privacy, security or integrity of that data.
7. **Responsibilities.** You use Apps at your own risk. ServiceNow has no liability or obligation to you with respect to Apps, other than ServiceNow Apps as provided in the applicable App Conditions. Your use of an App (including a ServiceNow App) with a ServiceNow Product constitutes a modification or customization of that ServiceNow Product by you for purposes of any separate agreement between you and ServiceNow and such customization or modification (or malfunction caused thereby) will not be subject to any support, warranty or indemnity under any such separate agreement.
8. **Termination.** This Agreement remains in effect until expiration of a subscription term for the App without prior renewal or until terminated by either party for cause upon 30 days' written notice, whichever occurs first. Upon expiration or termination of this Agreement: (a) you will cease to use the App; (b) you will uninstall the App within forty-five (45) days of the date of expiration or termination, or if no action is taken after such time or ServiceNow terminated this Agreement for cause, ServiceNow may uninstall the App; (c) you may not renew the then-current subscription term; and (d) the entirety of this Agreement, including your payment obligations, will survive. Termination of this Agreement or any App Conditions has no effect on your subscriptions or licenses to ServiceNow Products.
9. **Deactivation.** If ServiceNow reasonably believes that use of an App violates any law or third-party right, degrades ServiceNow's ability to meet its support, service availability or security terms, or may create an implicit or explicit failure of the confidentiality, integrity or availability of the ServiceNow Products (including, by way of example only: (i) executing commands as another user; (ii) accessing data in excess of permissions; (iii) posing as another user or service within a system; (iv) causing an abnormal denial of service; (v) inadvertently or intentionally destroying data without permission; or (vi) exploiting any encryption implementation weakness (such as to reduce the time or computation required to recover the plaintext from an encrypted message), then ServiceNow may deactivate the App to prevent further detrimental effects on the ServiceNow Products or require you upon notice to remove that App from your instance of ServiceNow Products.

10. **Disclaimer of Warranties.** SERVICENOW SPECIFICALLY DISCLAIMS ALL WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, STATUTORY OR OTHERWISE, WITH RESPECT TO STORE OR ANY APP (INCLUDING A "CERTIFIED APP") INCLUDING ANY WARRANTIES OF MERCHANTABILITY, TITLE, NON-INFRINGEMENT, FITNESS FOR A PARTICULAR PURPOSE, FREEDOM FROM DEFECTS OR VIRUSES, OR AVAILABILITY. THESE DISCLAIMERS OF WARRANTY DO NOT APPLY TO EXPRESS WARRANTIES MADE BY SERVICENOW IN APP CONDITIONS FOR SERVICENOW APPS.
11. **Limitations and Exclusions of Liability.** EXCEPT TO THE EXTENT PROHIBITED UNDER LAW OR AS OTHERWISE EXPRESSLY AGREED TO BY SERVICENOW IN THE APP CONDITIONS FOR SERVICENOW APPS, SERVICENOW SHALL NOT BE LIABLE FOR DAMAGES OF ANY KIND ARISING OUT OF OR IN CONNECTION WITH STORE OR ANY APP, INCLUDING ANY DIRECT, INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, INCLUDING LOSS OF REVENUE OR PROFITS, LOSS OF DATA, COVER AND COSTS OF SUBSTITUTE GOODS OR SERVICES, HOWEVER CAUSED AND WHETHER IN CONTRACT, IN TORT OR UNDER ANY OTHER THEORY OF LIABILITY, AND WHETHER OR NOT SERVICENOW HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, AND REGARDLESS OF WHETHER SERVICENOW REVIEWED, MODERATED, COMMENTED ON OR PROMOTED THE APP GIVING RISE TO DAMAGES. IF SERVICENOW IS LIABLE TO YOU FOR DAMAGES OF ANY KIND, THEN SERVICENOW'S TOTAL, CUMULATIVE LIABILITY TO YOU, ARISING OUT OF OR RELATED TO STORE OR ANY APP, WHETHER IN CONTRACT, IN TORT OR UNDER ANY OTHER THEORY OF LIABILITY, WILL NOT EXCEED THE PRICE (IF ANY) THAT YOU PAID THROUGH STORE TO ACCESS THAT APP DURING THE 12 MONTH PERIOD BEFORE SUCH LIABILITY AROSE. MULTIPLE CLAIMS WILL NOT INCREASE THIS LIMIT. THE PARTIES HAVE AGREED THAT THE LIMITATIONS OF THIS SECTION 9 WILL SURVIVE AND APPLY EVEN IF ANY LIMITED REMEDY SPECIFIED IN THIS AGREEMENT IS FOUND TO HAVE FAILED ITS ESSENTIAL PURPOSE.
12. **U.S. Government Community Cloud ("GCC") and National Security Cloud ("NSC").** The following applies exclusively to the extent that the App will be provisioned to a ServiceNow instance hosted in ServiceNow's GCC or NSC: you agree and acknowledge that ServiceNow's FedRAMP High, Impact Level 4, and Impact Level 5 ("IL5") Provisional Authorizations to Operate ("P-ATOs") do not apply to the security, privacy or any other attributes of any App. YOU AGREE TO ASSUME ALL RISK AND RESPONSIBILITIES OF SUCH INSTALLATION AND USE OF THE APP IN THE GCC OR NSC INSTANCE AND RELEASE SERVICENOW FROM ALL LIABILITY RELATED TO SUCH INSTALLATION AND USE.
13. **General Terms.** You will not access Apps in violation of any country's laws or regulations, including export controls. No waiver of this Agreement by us will be deemed a further or continuing waiver. You may submit purchase orders for your administrative convenience, but those purchase orders will not affect the terms of this Agreement, which may only be modified as provided in this Section 11 or by a writing signed by both parties. ServiceNow may amend this Agreement, upon notice to you. Such amendments will apply to transactions on Store on a going-forward basis. If you do not agree to such amendments, your recourse is to refrain from further use of Store. If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision will be eliminated or limited to the minimum extent such that the remaining provisions of the Agreement will continue in full force and effect. The parties are independent contractors. If you are contracting with ServiceNow, Inc. as described above, this Agreement shall be governed by the laws of the State of California without regard to its conflicts of laws rules and any dispute arising out of this Agreement, Store or any App shall be heard exclusively by a court sitting in Santa Clara County, California, USA. If you are contracting with ServiceNow Nederland B.V. as described above, this Agreement shall be governed by the laws of The Netherlands without regard to its conflicts of laws rules and any dispute arising out of this Agreement, Store or any App shall be heard exclusively by a court sitting in Amsterdam, The Netherlands. If you are contracting with ServiceNow Japan G.K. as described above, this Agreement shall be governed by the laws of Japan without regard to its conflicts of laws rules and any dispute arising out of this Agreement, Store or any App shall be heard exclusively by the District Courts located in Tokyo, Japan. This Agreement constitutes the final and entire agreement between you and us with respect to Store and the Apps, and it supersedes all prior and contemporaneous agreements relating to its subject matter except as expressly provided herein. This Agreement controls over any conflicting provision in App Conditions or Website Terms unless otherwise expressly provided herein.